



CHAPTER xix.

An Act to confer further powers on the New- A.D. 1922.
haven and Seaford Water Company and for
other purposes. [31st May 1922.]

WHEREAS by the East Blatchington and Seaford Water Order 1880 certain persons therein mentioned were authorised to construct works therein described and to supply water within the parishes of East Blatchington and Bishopstone and the town and parish of Seaford :

And whereas by the Newhaven and Denton Water Order 1880 certain persons therein mentioned were authorised to construct works therein described and to supply water within the parishes of Newhaven and Denton :

And whereas by the Newhaven and Seaford Water Order 1881 (in this Act referred to as "the Order of 1881") the undertakings authorised by the said two Orders of 1880 were amalgamated and vested in the undertakers mentioned in the Order of 1881 which undertakers were authorised to exercise all the powers of the two Orders of 1880 as well as other powers :

And whereas in the year 1881 the undertakers mentioned in the Order of 1881 formed a company which was duly registered by the name of the Newhaven and Seaford Water Company Limited :

And whereas by the Newhaven and Seaford Water Act 1898 (in this Act referred to as "the Act of 1898") the said limited company were dissolved and re-incorporated by the name of "The Newhaven and Seaford Water Company" (in this Act referred to as "the Company") and all powers conferred by the hereinbefore

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mentioned Orders on the undertakers therein respectively mentioned were transferred to and vested in the Company and the Company were authorised to construct further works and to supply water within the combined limits of supply under the two Orders of 1880 and the parish of Piddinghoe and other powers were conferred upon the Company :

And whereas the said limited company had acquired in the year 1897 certain lands near Poverty-bottom in the parishes of Bishopstone and Denton and commenced the construction thereon of a pumping station and the Company have completed the pumping station and constructed an adit and other works in connection therewith and the water now supplied by the Company is entirely derived by means of that pumping station :

And whereas it is expedient that the Company be authorised to continue the said pumping station and works in connection therewith and mains leading therefrom and to use the same as part of their undertaking and that further powers in connection with the pumping station and for the protection of the water to be obtained thereby be conferred upon the Company as in this Act contained :

And whereas the capital of the Company authorised by the Act of 1898 consists of (i) £30,000 10 per cent. original capital divided into 3,000 shares of £10 each the whole of which have been issued and fully paid up and (ii) £20,000 7 per cent. additional capital divided into 2,000 shares of £10 each of which 1,058 shares have been issued and there has been paid up thereon a total sum of £10,426 :

And whereas the Company are authorised by the Act of 1898 to borrow the sum of £7,500 in respect of the original capital and a further sum of £2,500 in respect of each £10,000 of the additional capital when issued making a total borrowing power of £12,500 and under that authority the Company have borrowed on debentures a total sum of £7,500 and it is expedient that the borrowing powers of the Company be increased as by this Act provided :

And whereas it is expedient that the rates and charges which the Company are authorised to demand for water supplied by them be increased and that further powers be conferred upon the Company and further

provision be made with reference to their undertaking as in this Act contained : A.D. 1922.

And whereas plans and sections of the works sanctioned and confirmed by this Act and plans of the lands by this Act authorised to be acquired or in or under which easements are by this Act authorised to be acquired compulsorily and a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited with the clerk of the peace for the county of East Sussex and are hereinafter respectively referred to as the deposited plans sections and book of reference :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1.—(1) This Act may be cited as the Newhaven and Seaford Water Act 1922. Short and collective titles.

(2) The Order of 1881 the Act of 1898 and this Act may together be cited as the Newhaven and Seaford Water Acts and Order 1881 to 1922.

2. The following Acts and parts of Acts (so far as the same are applicable for the purposes of this Act and are not inconsistent with the provisions of the Order of 1881 the Act of 1898 or this Act) are hereby incorporated with this Act (namely) :— Incorporation of Acts.

The Companies Clauses Consolidation Act 1845 except the provisions thereof with respect to the conversion of borrowed money into capital; Part III. (Debenture Stock) of the Companies Clauses Act 1863 as amended by subsequent Acts; The Lands Clauses Acts;

The Waterworks Clauses Acts 1847 and 1863 except the words in section 44 of the Waterworks Clauses Act 1847 “with the consent in writing of the
“owner or reputed owner of any such house
“or of the agent of such owner.”

3. In this Act words and expressions to which meanings are assigned by the Acts wholly or partly Interpretation.

A.D. 1922. — incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And—

“The limits of supply” means the limits within which the Company are now authorised to supply water namely:—

The urban districts of Newhaven and Seaford and the parishes of Bishopstone Denton and Piddinghoe in the rural district of Newhaven;

“The undertaking” means the undertaking of the Company for the time being authorised.

WORKS AND LANDS.

Confirma-
tion of
works.

4. The construction of the works hereinafter described and shown on the deposited plans together with all incidental and ancillary works pipes and apparatus is hereby sanctioned and confirmed and (subject to the provisions of this Act) the Company may maintain the said works in the lines and situations shown on the deposited plans and use the same for the purposes and as part of the undertaking.

The works hereinbefore referred to are situate in the rural district of Newhaven in the county of East Sussex and are—

- (1) A well and pumping station (known as the Poverty-bottom pumping station) on lands belonging to the Company and comprising the properties numbered on the Ordnance map (scale $\frac{1}{2500}$ edition of 1910) Sussex (East) sheet lxxviii—4 40 in the parish of Denton and 5a and 5b in the parish of Bishopstone:
- (2) An adit commencing in the said pumping station and terminating at a point 183 yards or thereabouts eastwards from the said pumping station:
- (3) An aqueduct or line of pipes (No 1) commencing in the said pumping station and terminating by a junction with the Company's 8-inch main in the footpath leading from Bishopstone to Foxhole Cottages:
- (4) An aqueduct or line of pipes (No. 1a) commencing by a junction with the said aqueduct or line

of pipes (No. 1) and terminating by a junction with the Company's said 8-inch main : A.D. 1922.

- (5) An aqueduct or line of pipes (No. 2) commencing by a junction with the said aqueduct or line of pipes (No. 1) in the occupation road leading from Norton to Denton Hill Farm and terminating at the north-western boundary of the site of the Company's East Blatchington Reservoir.

5.—(1) The Company may on in or under (i) the lands shown on the deposited plans as the site of the Poverty-bottom pumping station and (ii) the lands shown on the deposited plans and included within the "Limit of lands to be acquired" marked on those plans (after they shall have acquired the same) make and maintain all such wells shafts adits tunnels headways buildings machinery works and apparatus of whatsoever character as may be necessary or convenient in connection with or subsidiary to the works by this Act sanctioned and confirmed or any of them but nothing in this subsection shall exonerate the Company from any action indictment or other proceeding in the event of any nuisance being caused or permitted by them. Additional works.

(2) The Company may also under any of the lands shown on the deposited plans and included within the "Limit of adits" marked on those plans (so long as they shall be possessed of the necessary easements for the purpose) make and maintain all such adits tunnels and headways as may be necessary or convenient in connection with the Poverty-bottom pumping station.

(3) The Company may also from time to time so long as they are possessed of the necessary easements or rights for the purpose lay down and maintain in connection with and as part of the aqueducts or lines of pipes (No. 1) (No. 1a) and (No. 2) by this Act sanctioned and confirmed any additional lines of pipes and other works subsidiary or ancillary to the said aqueducts.

(4) Any electric apparatus made or maintained by the Company under this Act shall be so made maintained and used as not to interfere with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General or with telegraphic communication by means of such line.

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Power to
acquire
lands and
easements.

6.—(1) The Company may for the purposes of the works by this Act sanctioned and confirmed and for the general purposes of their undertaking enter upon take and use the lands shown on the deposited plans and included within the “Limit of lands to be acquired” marked on those plans or any outstanding estates and interests in those lands not already belonging to the Company but nothing in this section shall authorise the Company to stop up any rights of way existing at the passing of this Act over the occupation road leading from Norton to Denton Hill Farm along the western side of the said lands.

(2) The Company may enter upon the lands shown on the deposited plans and included within the “Limit of easements to be acquired” marked on those plans and acquire such easements in those lands (in addition to any easements or rights therein now belonging to the Company and without being required to purchase the surface of the lands) as they may require for making and maintaining and from time to time repairing renewing inspecting and using and obtaining access to the aqueduct or line of pipes (No. 2) by this Act sanctioned and confirmed and any additional lines of pipes and other works constructed in connection therewith under the powers of subsection (3) of the section of this Act of which the marginal note is “Additional works.”

The Company shall make to the owners lessees and occupiers and other parties having any estate or interest in the lands referred to in this subsection compensation for any easements so acquired and may give notice to treat in respect of any such easements and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such easements as fully as if the same were lands within the meaning of those Acts.

(3) Nothing in this section shall entitle the Company to fence off or sever the lands referred to in subsection (2) of this section from the adjoining lands but the owners or occupiers for the time being shall (subject to any easements in those lands for the time being belonging to the Company) have the same rights to use and cultivate the lands at all times as if this Act had not been passed.

Persons
under
disability
may grant

7. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this

Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. A.D. 1922.
easements
&c.

8. The powers of the Company for the compulsory purchase of lands and easements for the purposes of this Act shall cease after the expiration of three years from the passing of this Act. Period for
compulsory
purchase of
lands &c.

9. The Company may subject to the provisions of this Act collect divert take pump use and appropriate all or any of the underground waters which will or may be intercepted by or collected in the pumping station well and adit by this Act sanctioned and confirmed or by any works connected therewith or ancillary thereto and confirmed or authorised by this Act or any adits tunnels and headways constructed under the powers of this Act. Power to
take
waters.

10. The Company shall not construct any works for taking or intercepting water from any lands unless the works are authorised by and the lands on or under which the works are to be constructed are specified in this or some other Act of Parliament or Order having the force of an Act. Limiting
powers of
Company
to abstract
water.

11.—(1) The Company may hold any lands vested in or acquired by them under the powers of the Act of 1898 or this Act which they may deem necessary for the purpose of protecting their waterworks and water supply against pollution fouling and contamination and so long as such necessity shall continue such lands shall not be deemed to be superfluous lands within the meaning of the Lands Clauses Acts but the Company shall not create or permit a nuisance on any such lands and shall not erect any buildings thereon other than offices and dwellings for persons in their employ and such buildings and works as may be incident to or connected with their undertaking. Power to
hold lands
for protec-
tion of
water-
works.

(2) The Company may in and upon the lands referred to in subsection (1) of this section construct

A.D. 1922. — and lay down drains sewers watercourses and other works and conveniences necessary or proper for the purpose of intercepting or taking all foul waters arising or flowing upon such lands or necessary or proper for preventing the water which the Company are empowered to take from being polluted and the Company may for the purposes aforesaid carry any such drain sewer or watercourse under across or along any street or road subject and according to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes.

Power to agree as to drainage of lands.

12. The Company may make and carry into effect agreements with the owners lessees or occupiers of any lands from through or under which any water may flow or percolate directly or derivatively into any well adit or other work which the Company are by the Act of 1898 or this Act authorised to maintain with reference to the execution by the Company or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters so flowing or percolating.

As to leasing of lands.

13. The words “not exceeding seven years in possession” in section 56 (Company may dispose of lands not required) of the Act of 1898 are hereby repealed.

Dwelling-houses for persons in Company's employ.

14. The Company may purchase or take on lease dwelling-houses for persons employed by them and may erect and maintain dwelling-houses for such persons upon any lands for the time being belonging to the Company for the purposes of their undertaking and (subject to the terms of the lease) upon any lands for the time being leased to the Company for the purposes of their undertaking.

Applica-
tion of
Water-
works
Clauses Act
1847 to
pipes tele-
phones &c.

15. The provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets shall apply with the necessary modifications to the construction laying down erection and maintenance in any streets or roads within the limits of supply of any discharge pipes telephone or telegraph posts wires conductors or apparatus which the Company may and which they are hereby authorised to lay down or erect for the purposes of their undertaking:

Provided that any telephone or telegraph post wires conductors or apparatus laid down or erected by the Company under the provisions of this section shall not be used in contravention of the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

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16.—(1) For the purpose of executing constructing laying down enlarging extending repairing cleansing emptying or examining any reservoir well adit main pipe or other work of the Company the Company may cause the water in any such work to be discharged into any available stream ditch pond or watercourse Provided that water so discharged shall be as free as may be reasonably practicable from mud or solid or offensive matter.

Discharge
of water
into
streams &c.

(2) In the exercise of the power conferred by this section the Company shall do as little damage as may be and shall make full compensation to all persons for all damage sustained by them by reason or in consequence of the exercise of such power the amount of compensation to be settled in case of difference by arbitration under and pursuant to the provisions of the Arbitration Act 1889.

17. For the protection of the county council of East Sussex (in this section referred to as "the council") the following provisions shall have effect (that is to say):—

For
protection
of East
Sussex
County
Council.

(1) All mains pipes and works of the Company (other than replacements) hereafter laid in or along any main road or in upon or across any county or main road bridge or the roadway over the same or the approaches thereto shall be laid in such position in or at the side thereof and at such depth as the council in writing under the hand of their surveyor may reasonably direct :

(2) The notice required by section 30 of the Waterworks Clauses Act 1847 shall (except for laying connecting or repairing consumers' service pipes as to which three days' notice shall be given and except in cases of emergency arising from defects in any of the pipes or other works) be not less than in the case of any such bridge or approaches one month instead of three days

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and in all other cases seven days instead of three days;

- (3) The plan required by section 31 of the last-mentioned Act shall (except as aforesaid) be delivered to the council or their surveyor by the Company not less than in the case of any such bridge or approaches one month and in all other cases seven days before the Company commence to open or break up any main road or interfere with any county or main road bridge or roadway over the same or approaches thereto or other property of the council for the purpose of executing the works :
- (4) If the Company in the execution of any works in or affecting any such main road or bridge or approaches shall cause any damage injury or disturbance to such main road or bridge or approaches and shall have failed to make good all such damage injury or disturbance in accordance with the provisions of the Waterworks Clauses Act 1847 then it shall be lawful for the council after reasonable notice to the Company of the alleged failure and of the works which they propose to execute to do all works necessary for making good all such damage injury or disturbance and the Company shall repay to the council all costs charges and expenses which the council shall reasonably and properly incur in carrying out such works including all reasonable expense of superintendence :
- (5) Nothing in this Act shall authorise the Company to interfere with the structural part of any county or main road bridge without the consent in writing of the surveyor of the council which consent shall not be unreasonably withheld and may be given upon such conditions (other than a money payment) as the council or such surveyor may reasonably determine :
- (6) Nothing in this Act shall interfere with any right of the council to alter the level of or deviate or improve any main road in or along which any mains pipes or works of the Company shall have been laid and the Company shall with all reasonable speed after receiving

notice in writing under the hand of the clerk or surveyor to the council so to do alter the position of any such mains pipes or works in such manner and to such extent as may be agreed or determined by arbitration and the council shall repay to the Company all expenses reasonably incurred by the Company in complying with the provisions of this section and shall during the alteration deviation or improvement of any such main road as aforesaid afford all reasonable facilities to enable the Company to carry temporarily their mains pipes and works along the road so as not to interrupt the continuous supply of water or to diminish the pressure of such supply through such mains or pipes :

- (7) Nothing in this Act shall prejudice or affect the right of the council at any time to remove alter rebuild widen or repair any county or main road bridge or the roadway over the same or any approaches thereto in over or near or to which any mains pipes or works of the Company are laid or attached in the same manner as they might have removed altered rebuilt widened or repaired such bridge or the roadway over the same or the approaches thereto if this Act had not passed and such mains pipes or works had not been laid in over or near or attached to such bridge and in the event of any such bridge or the roadway over the same or the approaches thereto in over or near or to which any such mains pipes or works are laid or attached being removed altered rebuilt widened or repaired as aforesaid the Company shall (if and so far as it may be reasonably necessary for the purpose of such removal alteration rebuilding widening or repairing) at their own cost in the case of mains pipes and works laid or attached after the passing of this Act and at the expense of the council in the case of mains pipes and works laid or attached before the passing of this Act alter the position of any such mains or pipes or the works by which the same are laid or attached as aforesaid Provided that during the removal alteration rebuilding widening or

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repairing of such bridge or roadway over the same or approaches as aforesaid the council shall afford all reasonable facilities for temporarily carrying such mains pipes and works across any stream or river so as not to interrupt the continuous supply of water or to diminish the pressure of such supply through such mains or pipes. Provided also that in case any such removal alteration rebuilding widening or repairing shall be required for the accommodation of any light railway or tramway belonging to the council or of any other service or undertaking of or carried on by the council they shall repay to the Company all expenses which the Company reasonably incur under this subsection :

- (8) All works of the Company executed after the passing of this Act shall be so executed as not to stop the traffic and (so far as reasonably practicable) not to impede or interfere with the traffic on any main road or over any county or main road bridge or the approaches thereto :
- (9) Any difference which may arise between the council and the Company under this section and any matter by this section required to be referred to arbitration shall be referred to an arbitrator to be agreed upon between them or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to the reference :
- (10) The council shall not be liable for or in respect of any damage or injury done to any work of the Company constructed or laid after the passing of this Act by reason of such work being laid at a depth below the surface of any main road or the roadway over a county or main road bridge or the approaches thereto insufficient for its protection from injury arising from the reasonable use by the council of any steam or other roller not exceeding fifteen tons in weight for the repair of such road or of any traction engine not exceeding the weight aforesaid.

18. For the protection and benefit of Captain Leslie Ninian Masters or other the owner for the time being of the estate known as Norton in the parishes of Denton and Bishopstone (in this section referred to as "the owner") the following provisions shall unless otherwise agreed in writing between the owner and the Company apply and have effect (that is to say):—

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For protec-
tion of
Captain
Masters'
Norton
Estate.

(1) The Company shall where water is required for agricultural purposes along the line of the mains aqueducts or lines of pipes hereinafter described so far as the same pass through the said estate supply such water at a rate not exceeding tenpence per one thousand gallons but subject nevertheless to the rules and regulations of the Company for the time being in force with respect to the supply of water by meter. The mains aqueducts or lines of pipes hereinbefore referred to are as follows:—

(a) The mains or pipes shown upon the plan annexed to the indenture dated the eleventh July eighteen hundred and eighty-two and made between Abel Smith and Samuel Whitbread of the first part the Right Honourable Henry Thomas Earl of Chichester of the second part and the Newhaven and Seaford Water Company Limited of the third part or any mains or pipes which may be substituted therefor under the covenants in the said indenture contained;

(b) The aqueducts or lines of pipes Nos. 1 la and 2 by this Act authorised:

(2) Nothing in this Act contained shall prejudice the rights of the owner by virtue of the covenants contained in the said indenture dated the eleventh July eighteen hundred and eighty-two as to the repair, depth and removal of the mains or pipes shown upon the plan annexed to such indenture so far as such mains or pipes pass through the said estate:

(3) The Company shall repair from time to time as often as necessary the occupation road referred to in the indenture dated the fifth October eighteen hundred and ninety-seven and made between Abel Smith and Samuel

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Whitbread of the first part the Right Honourable Walter Earl of Chichester of the second part the said Abel Smith and Samuel Whitbread of the third part the Honourable Thomas William Pelham of the fourth part and the Newhaven and Seaford Water Company Limited of the fifth part in accordance with the covenants contained in that indenture and also any additions or alterations to the said occupation road which may at any time hereafter be made by the Company until such road shall be adopted by the local authority as a public highway.

For protec-
tion of
Bishop-
stone
Estate.

19. For the protection and benefit of Lionel Harry Mawe Willett or other the owner for the time being of the estate known as the Bishopstone Manor House and Farm in the parish of Bishopstone (in this section referred to as "the owner") the following provisions shall unless otherwise agreed in writing between the owner and the Company apply and have effect (that is to say):—

(1) The Company shall where water is required for agricultural purposes along the line of the mains aqueducts or lines of pipes hereinafter described so far as the same pass through the said estate supply such water at a rate not exceeding tenpence per one thousand gallons but subject nevertheless to the rules and regulations of the Company for the time being in force with respect to the supply of water by meter The mains aqueducts or lines of pipes hereinbefore referred to are as follows:—

(a) The mains or pipes shown upon the plan annexed to the indenture dated the eleventh July eighteen hundred and eighty-two and made between Abel Smith and Samuel Whitbread of the first part the Right Honourable Henry Thomas Earl of Chichester of the second part and the Newhaven and Seaford Water Company Limited of the third part or any mains or pipes which may be substituted therefor under the covenants in the said indenture contained;

(b) The aqueduct or line of pipes No. 2 by this Act authorised:

- (2) Nothing in this Act contained shall prejudice the rights of the owner by virtue of the covenants contained in the said indenture dated the eleventh July eighteen hundred and eighty-two as to the repair depth and removal of the mains or pipes shown upon the plans annexed to such indenture so far as such mains or pipes pass through the said estate. A.D. 1922.

RATES AND CHARGES.

20.—(1) The Company shall at the request of the owner or occupier of any dwelling-house or part of a dwelling-house entitled under the provisions of the Order of 1881 the Act of 1898 or this Act to demand a supply of water for domestic purposes furnish to such owner or occupier a sufficient supply of water for such domestic purposes at rates per annum not exceeding the rates hereinafter mentioned which rates shall be deemed to have come into force as from the twenty-fourth day of June nineteen hundred and twenty-two (that is to say) :—

Rates for
supply of
water for
domestic
purposes.

Where the rateable value of the house or part of the house supplied does not exceed five pounds the rate of eleven shillings;

Where such rateable value exceeds five pounds but does not exceed ten pounds the rate of seventeen shillings;

Where such rateable value exceeds ten pounds but does not exceed twenty pounds the rate of ten and a half per centum on such rateable value but not in any such case exceeding the rate of forty shillings;

Where such rateable value exceeds twenty pounds the rate of nine per centum on such rateable value but not in any such case being less than the rate of forty shillings:

Provided that all inns and hotels (whether public or private) of which the rateable value exceeds ten pounds shall be liable to a yearly rate not exceeding ten and a half per centum per annum on such rateable value whether the same exceeds twenty pounds or not:

Provided also that if the owner of two or more houses of each of which the rateable value does not

A.D. 1922. — exceed fifteen pounds shall enter into an agreement in writing with the Company undertaking to pay the water rates in respect of those houses for any period not being less than one year and to pay those rates whether the houses are occupied or not the owner shall during the continuance of the agreement be allowed a rebate of ten per centum on the rates hereinbefore prescribed.

(2) The rateable value of any such house or part of a house as aforesaid shall be ascertained by the valuation list in force at the commencement of the quarter for which the rate accrues or if there is no such list in force by the last rate made for the relief of the poor. Provided that where the water rate is chargeable on the rateable value of a part only of any hereditament entered in the valuation list such rateable value shall be a fairly apportioned part of the rateable value of the whole hereditament ascertained as aforesaid the apportionment in case of dispute to be ascertained by a court of summary jurisdiction.

(3) In addition to the foregoing rates the Company may charge in respect of every water-closet beyond the first (for which no additional charge shall be made) on any premises supplied with water a sum not exceeding seven shillings and sixpence per annum and in respect of every fixed bath capable of containing not more than fifty gallons a sum not exceeding ten shillings per annum and in respect of every fixed bath capable of containing more than fifty gallons such sum as the Company may think fit. Such additional sums shall be paid quarterly in advance and be recoverable in all respects with and as the water rate.

Rates
payable by
owners of
small
houses.

21. Where a house of a rateable value not exceeding fifteen pounds supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Company so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner. Provided that no greater sum shall be recovered at any time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate.

22. The price to be charged for a supply of water by meter shall not in the case of any consumer exceed two shillings and sixpence per thousand gallons for the first fifty thousand gallons of water supplied to the consumer in any quarter of the year and two shillings per thousand gallons for the quantity (if any) of water supplied to such consumer in such quarter in excess of fifty thousand gallons. Provided that the Company shall be entitled to charge a minimum sum of one pound in any quarter of the year for water supplied by meter otherwise than for gardens and of five shillings in any quarter of the year for water supplied by meter for gardens.

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Price of
supply by
meter.

23. The Company shall not be bound to supply with water otherwise than by meter any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required.

Supply to
houses
partly used
for trade &c.

24. The Company shall not be bound to supply with water any workhouse hospital asylum (whether public or private) sanatorium hotel public-house inn club school or boarding-house or any public institution otherwise than by meter upon such terms as may be agreed between the Company and the occupier or other person having the charge thereof or at the prices which the Company are under the provisions of the section of this Act of which the marginal note is "Price of supply by meter" entitled to charge for a supply of water by meter. Provided that this section shall not apply to any such premises which are habitually occupied by less than twelve persons.

Supply by
meter in
certain
cases.

25. In the event of the Minister of Health being satisfied that the cost of labour and materials or other circumstance affecting the undertaking has substantially altered he may if he thinks fit on the application of the Company or of a local authority having jurisdiction within the limits of supply made at any time after the expiration of five years from the passing of this Act by order vary either by way of increase or decrease the rates and charges for the supply of water authorised by this Act or by the Order of 1881 as amended by this Act:

Revision
of rates.

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Provided that the rates and charges prescribed by any such order shall be of such respective amounts as to provide (after paying all proper expenses of and in connection with the working management and maintenance of the undertaking and making good depreciation and paying all other costs charges and expenses (if any) properly chargeable to revenue) a reasonable return on the share capital of the Company. Provided also that the rates and charges for the time being in force may in the like event be varied in like manner at any time after the expiration of any or every period of five years after they were last altered.

SUPPLY OF WATER.

Mainten-
ance of
common
pipe.

26. When several houses or parts of houses in the occupation of several persons are supplied by one common pipe belonging to the several owners or occupiers of such houses or parts of houses the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time properly incurred by the Company in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the engineer of the Company.

Company
not bound
to supply
several
houses or
parts of
houses by
one pipe.

27. The Company shall not be bound to supply more than one house or part of a house occupied as a separate tenement by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house or part of a house occupied as a separate tenement supplied by them with water:

Provided that this section shall not apply in the case of a communication pipe which at the passing of this Act is used for the supply of water to more than one house or part of a house unless and until such communication pipe becomes defective or requires renewal in which event the Company may require that a separate pipe be laid from the main pipe into each house or part of a house occupied as a separate tenement formerly supplied with water by means of that communication pipe.

Notice of
discon-
tinuance.

28. A notice to the Company from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf

of the consumer and be left at or sent by post to the office of the Company or be given by the consumer personally at the office of the Company. A.D. 1922.

29.—(1) For the purpose of complying with any obligation under the Waterworks Clauses Act 1847 to maintain any pipe or apparatus the person liable to maintain the same shall have the like power to open the ground as is conferred upon him by and subject to the conditions of sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes. As to communication pipes.

(2) The Company may by agreement with any owner or occupier entitled or required to lay maintain repair or remove any communication pipe and for that purpose to open or break up any street in the limits of supply execute such works on behalf of such owner or occupier and any expenses incurred by the Company shall be repaid by the owner or occupier with whom the agreement is made and shall be recoverable summarily as a civil debt.

30. If in the opinion of the Company any waste of water or injury or risk of injury to person or property is caused or likely to be caused by reason of any injury to or defect in any communication pipe it shall be lawful for the Company to execute such repairs to the communication pipe as they may think necessary or expedient in the circumstances of the case without being requested so to do and if any injury to or defect in the communication pipe shall have been found the expense incurred by the Company for the purposes of ascertaining the injury or defect and executing the repairs (including the expense of breaking up filling in reinstating and making good any road pavement or soil for those purposes) shall be recoverable by the Company from the owner of the premises supplied by means of the communication pipe or in cases where the communication pipe is repairable by the occupier of such premises from the occupier in like manner as the water rates in respect of the premises are recoverable. Provided that (except in case of emergency) the Company before executing any repairs to a communication pipe or entering into any house or premises for that purpose shall give to the owner or occupier of the premises supplied by the communication

Power to Company to repair communication pipes.

A.D. 1922. pipe not less than forty-eight hours' previous notice of their intention to exercise those powers, and shall not exercise the same if the owner or occupier shall before the expiration of such notice have repaired the communication pipe to the reasonable satisfaction of the Company.

Meters &c.
to measure
water or
detect
waste.

31. Subject to the provisions of the Waterworks Clauses Act 1847 the Company may for the purpose of measuring the quantity of water supplied or preventing and detecting waste affix and maintain meters and other apparatus on the service pipes and mains of the Company and stop-cocks in the pipes supplying houses with water and may insert in the roads or footway the necessary covers or boxes for giving access and protection thereto and may for that purpose temporarily break up and interfere with public and private streets roads lanes footways courts passages tramways pipes wires and apparatus Provided that the Company shall not break up or interfere with any telegraphic line (as defined by the Telegraph Act 1878) of the Postmaster-General except in accordance with and subject to the provisions of the said Act.

Power to
lay pipes
in private
streets.

32. The Company may on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply those premises with water and for that purpose the Waterworks Clauses Act 1847 shall apply as if section 29 of that Act were excepted from incorporation in the Order of 1881 the Act of 1898 and this Act.

FINANCIAL PROVISIONS.

New stock
to be sold
by auction
or tender.

33.—(1) All shares or stock created after the passing of this Act under the powers of the Act of 1898 shall be issued in accordance with the provisions of this section.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided as follows:—

(a) Notice of the intended sale shall be given in writing to the clerk to the council of every

urban and rural district wholly or partly included within the limits of supply and to the secretary of the London Stock Exchange at least seven days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply;

- (b) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be;
- (c) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds;
- (d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum. In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid;
- (e) It shall be one of the conditions of sale that the sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of shares or stock of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of water supplied by the Company in such proportions as the directors may think fit or to one or more of these classes of persons only. Provided in the case of an offer to holders of shares or stock that if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

A.D. 1922.
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(4) Any shares or stock which have been offered for sale in accordance with subsection (2) or with subsections (2) and (3) and are not sold may at the discretion of the directors be again offered for sale by public auction or by tender in accordance with the provisions of this section or may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the shares or stock.

Power to
offer shares
and stock
for sub-
scription
and to pay
commis-
sions.

34.—(1) Notwithstanding anything in the immediately preceding section of this Act it shall be lawful for the Company with the consent of the Board of Trade and subject to such conditions as the Board may think fit to impose to offer for subscription by the public free from the provisions of the said section any shares or stock to be created under the powers of the Act of 1898 as amended by this Act and upon any such offer and upon offer for subscription by the public of any debenture stock authorised to be issued by the Company to pay a commission not exceeding five per centum to any person in consideration of his subscribing or agreeing to subscribe whether absolutely or conditionally for any such shares or stock or debenture stock or procuring or agreeing to procure subscriptions whether absolute or conditional for any such shares or stock or debenture stock. Provided that the payment of the commission and the amount or rate per centum of the commission paid or agreed to be paid shall be disclosed in every prospectus advertisement or other document of the Company inviting subscriptions for such stock.

(2) Nothing in this section shall affect any power of the Company to pay brokerage.

Amend-
ment of
section 23
of Act of
1898.

35. The words “nor shall any such share or stock
“vest in the person or corporation accepting the same
“unless and until the full price of such share or stock
“including any premium obtained upon the sale thereof
“shall have been paid in respect thereof” in section 23
(Power to Company to raise additional capital) of the
Act of 1898 are hereby repealed.

36. Section 25 (Profits of Company limited) of the Act of 1898 shall in respect of any preference capital issued after the passing of this Act have effect as if the words "such rate per centum as the directors may at the time of issue determine" were inserted in that section instead of the words "six pounds per centum per annum."

A.D. 1922.

Dividend
on prefer-
ence capital.

37.—(1) The Company may at any time borrow on mortgage of the undertaking in respect of the shares issued prior to the passing of this Act any sums not exceeding in the whole (inclusive of any sums already borrowed by them under the Act of 1898) the total sum of twenty thousand two hundred pounds.

Power to
borrow.

(2) The Company may also borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one half part of the amount which at the time of borrowing has been actually received by the Company (including premiums) on any additional capital issued after the passing of this Act under the powers of the Act of 1898 as amended by this Act but no sum shall be borrowed in respect of any capital so issued until the Company have proved to a justice of the peace before he gives his certificate under the fortieth section of the Companies Clauses Consolidation Act 1845 that the total sum payable on the stock or the total amount called up on the shares at the time issued together with the premium (if any) realised on the sale thereof have been fully paid up.

38. The Company may create and issue debenture stock subject to the provisions of Part III of the Companies Clauses Act 1863 and of section 36 of the Act of 1898.

Debenture
stock. ■ ■

39. The provisions of the Companies Clauses Consolidation Act 1845 with respect to the conversion of the borrowed money into capital shall cease to apply to the Company.

Borrowed
money not
to be con-
verted into
capital.

40. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver and in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than two thousand pounds in the whole.

Appoint-
ment of
receiver.

A.D. 1922.

Priority of
principal
moneys
secured by
existing
mortgages.

41. The principal moneys secured by all mortgages granted by the Company in pursuance of the Act of 1898 before the passing of this Act and subsisting at the passing hereof shall during the continuance of those mortgages have priority over the principal moneys secured by any mortgages granted by virtue of this Act.

Incorporation of
sections of
Act of 1898.

42. Section 37 (Priority of mortgages and debenture stock over other debts) and section 38 (Application of moneys) of the Act of 1898 shall extend to and in respect of all mortgages and debenture stock granted and issued and moneys raised under this Act as if those sections with any necessary modifications were re-enacted in this Act.

Power to
apply funds.

43. The Company may apply to any of the purposes of this Act to which capital is properly applicable any moneys which they have raised or are authorised to raise under the Act of 1898.

Issue of
redeemable
preference
capital and
debenture
stock.

44.—(1) If the Company desire to raise by the issue of preference stock any capital which they are by the Act of 1898 authorised to raise and have not already raised or to issue any debenture stock under the powers of this Act or after the passing of this Act under the powers of the Act of 1898 they may create and issue such preference stock or debenture stock as redeemable stock on such terms and conditions as may be specified in a resolution of the Company passed at a special meeting convened for the purpose.

(2) If it is so provided in the resolution the Company may—

- (i) Call in and pay off such preference or debenture stock or any part thereof at any time before the date fixed for redemption;
- (ii) Redeem such stock or any part thereof either by paying off such stock or by issuing to any stockholder subject to his consent other stock in substitution therefor and may for the purpose of providing money for paying off such stock or providing substituted stock create and issue new stock (redeemable or irredeemable) or re-issue stock originally created and issued as aforesaid so however that the creation and issue for that purpose

of any particular class of stock does not make the total nominal amount of such stock exceed the amount of that class of stock which the Company are for the time being authorised to create except during the necessary interval between the creation and issue of the new stock and the redemption of the old stock. A.D. 1922.

(3) The Company shall not redeem out of revenue any redeemable stock so created and issued as aforesaid.

(4) In this section the expressions "stock" and "stockholder" include "shares" and "shareholder."

ADMINISTRATIVE PROVISIONS.

45. Notwithstanding anything in the Companies Meetings of
Clauses Consolidation Act 1845 the Company may by a Company.
resolution of a general meeting at any time determine that the future ordinary meetings of the Company shall be held once only in each year in such month as the directors may from time to time determine and the Company may from time to time in like manner alter or rescind any such resolution.

46. If and so long as the ordinary meetings of the Company shall be held only once in each year the following provisions shall have effect:— Interim dividends and annual accounts.

(a) It shall be lawful for the directors to declare and pay in any year an interim half-yearly dividend out of the profits of the Company without the sanction or direction of a general meeting:

(b) The Company and the directors shall not be required to make up a half-yearly balance sheet and accounts and the balance sheet and accounts made up by them in accordance with section 116 of the Companies Clauses Consolidation Act 1845 shall relate to the transactions of the Company in the course of the preceding year.

47.—(1) The directors may close the register of transfers for a period not exceeding fourteen days previous to the declaration of any dividend and they may close the register of transfers of mortgages or debenture stock for a period not exceeding fourteen days previous Closing of transfer books.

A.D. 1922. to each date at which the interest thereon shall be payable and in the case of any such register they may fix a day for closing the same of which seven days' notice shall be given either by circular to each proprietor or by advertisement in a newspaper circulating in the county of East Sussex.

(2) Any transfer of shares stock mortgages or debenture stock made during the time when the register of transfers of such security is so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend or the payment of any such interest as the case may be.

Provisions
as to
directors.

48.—(1) Except in the case of a director retiring by rotation and offering himself or being proposed for re-election no person shall be capable of being elected at a general meeting a director of the Company unless notice in writing that such person intends to offer himself or will be proposed for the office of director shall have been given to the secretary or left at the office of the Company ten days at least before the day of election.

(2) The continuing directors may act notwithstanding any vacancy in their body but so that if at any time the number of directors of the Company holding office shall be less than the minimum number prescribed by section 40 of the Act of 1898 the directors shall not except for the purpose of filling vacancies and allotting shares or stock to any proposed director or directors act so long as the number is below such minimum.

(3) Notwithstanding anything in the Companies Clauses Consolidation Act 1845 no person shall be disqualified from being a director of the Company by reason of his holding any office or place of trust or profit under the Company or by reason of his being interested in any contract with the Company nor shall any director be required to cease from voting or acting as a director by reason of his accepting any such office or place of trust or profit or becoming interested in any such contract Provided that in the case of his being or becoming interested in any contract with the Company whether such interest shall arise before or after his appointment as a director the nature of his interest in the contract shall be disclosed by him at the meeting of the directors at which the contract is determined on

if his interest then exists or in any other case at the first meeting of the directors after the acquisition of his interest or after his appointment and also in the next annual report of the Company and that no director shall as a director vote in respect of any such contract and if he does so vote his vote shall not be counted but this prohibition shall not apply to any contract by or on behalf of the Company to give to the directors or any of them any security by way of indemnity. A.D. 1922.

49.—(1) The Company shall annually appoint one person or two persons or a firm of accountants who shall be a member or members of the Institute of Chartered Accountants or the Society of Incorporated Accountants and Auditors or an accountant or accountants approved by the Board of Trade to be the auditor or auditors of the Company but nothing in this section shall prevent any person who at the date of the passing of this Act is an auditor of the Company continuing to act as such auditor. Auditors.

(2) It shall not be necessary for any auditor to hold any shares or stock in the Company.

(3) From and after the passing of this Act no person not being a retiring auditor of the Company shall be eligible to be elected at any general meeting an auditor of the Company unless notice in writing be given to the secretary or left at the principal office of the Company fourteen days at least before the date of such meeting that such person will be proposed for election as an auditor of the Company. The secretary shall on receipt of any such notice send a copy thereof to the retiring auditor and during such fourteen days and on the day of election fix a copy of the notice in some conspicuous place in the said office.

50. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 they may determine the remuneration of the secretary and auditors. Determination of remuneration of secretary &c.

51. It shall be lawful for the Company or the directors to make superannuation and other allowances and to pay pensions or gratuities to any officer servants or employees of the Company who may be temporarily or permanently disabled by sickness infirmity or age and for those purposes to apply the funds and revenues of the Company. Power to make superannuation and other allowances.

A.D. 1922.

Appoint-
ment of
proxies.

52. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 the attorney of any shareholder or stockholder duly authorised in writing may appoint a proxy to vote for and on behalf of the shareholder or stockholder and for that purpose may execute on behalf of the shareholder or stockholder the necessary form of proxy Provided that the instrument appointing the attorney shall be transmitted to the secretary (if not already registered by him) at the same time as the instrument appointing the proxy.

As to voting
rights of
preference
capital.

53. Notwithstanding anything in the Act of 1898 no person shall be entitled to vote at any general meeting of the Company in respect of shares or stock to which a preferential dividend shall be assigned except as otherwise expressly provided by the resolution creating the shares or stock.

Joint
holders.

54. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 where several persons are jointly entitled to and registered as holders of any shares or stock any one of those persons may vote at any meeting (at which holders of shares or stock of the same class are entitled to vote) either personally or by proxy in respect of the shares or stock as if he were solely entitled thereto but if more than one of the joint holders be present at any meeting personally or by proxy that one of the said persons so present whose name stands first on the register in respect of the shares or stock shall alone be entitled to vote in respect thereof Several executors or administrators of a deceased member in whose name any shares or stock stands shall for the purposes of this section be deemed joint holders thereof.

MISCELLANEOUS.

Guarantees
by district
councils.

55.—(1) Any urban or rural district council the district under whose jurisdiction is in whole or part within the limits of supply may give and enter into any guarantee or contract for securing payment to the Company of such periodical or other sum or sums of money at such time or times in such manner and subject to such stipulations as may be agreed by and between such council and the Company for the purpose of or with respect to the providing or laying down by the Company of any main or pipe or works for the supply

of water within any part of such district which is within the limits of supply. A.D. 1922.

(2) The giving of such guarantee and the performance of any contract in relation thereto shall be deemed to be a purpose for which under the provisions of any general Act relating to the powers of such council they may incur expenditure and any such council may raise any money which may become payable to the Company under this section in like manner as money may be raised under the provisions of any such general Act.

56. Section 35 of the Waterworks Clauses Act 1847 in its application to the Company shall be read and construed as if the words "one seventh part" and "four successive years" were substituted therein for the words "one tenth part" and "three successive years" respectively. Application of section 35 of Waterworks Clauses Act 1847.

57. Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Company or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Company shall (without prejudice to any other right or remedy for the protection of the Company) be liable to a fine not exceeding five pounds and the Company may in addition thereto recover the amount of any damage by them sustained. Injuring meters &c.

And in any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Company or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Company the Company may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for insuring the proper registering by such meter of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be

A.D. 1922. — repaid to the Company by the person so offending and may be recovered by them as water rates are recoverable. The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Company when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *prima facie* evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

Penalty for closing valves and apparatus.

58. Every person who shall wilfully (without the consent of the Company) or negligently open close or shut off any valve cock or other work or apparatus belonging to the Company whereby the supply of water shall be interfered with shall (without prejudice to any other right or remedy of the Company) be liable on conviction to a penalty not exceeding five pounds and the Company may in addition thereto recover the amount of any damage by them sustained. Provided that this section shall not apply to a consumer opening or closing the valve fixed on his communication pipe.

Judges not disqualified.

59. A judge of any court or a justice shall not be disqualified from acting in the execution of any Act or Order relating to the Company by reason of his being liable to any rate.

Contents of summons &c.

60. Where the payment of more than one sum by any person is due under this Act or any other Act or Order relating to the Company any summons or warrant issued for the purposes of such Acts and Orders or any of them in respect of that person may contain in the body thereof all the sums payable by him.

Recovery of penalties &c.

61. Save as otherwise by the Order of 1881 the Act of 1898 or this Act expressly provided all offences against the Order of 1881 the Act of 1898 or this Act and all penalties forfeitures costs and expenses imposed or recoverable under the Order of 1881 the Act of 1898 or this Act and any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

62. Proceedings for the recovery of any demand made under the authority of the Order of 1881 the Act of 1898 or this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

A.D. 1922.

Recovery
of demands.

63.—(1) The following enactments are hereby repealed to the extent hereinafter mentioned:—

Repeal &c.

The East Blatchington and Seaford Water Order 1880 The whole Order (so far as not already repealed by the Order of 1881) except the provisions thereof which are set out in the Schedule to this Act;

The Newhaven and Denton Water Order 1880 The whole Order so far as not already repealed by the Order of 1881;

The Order of 1881 sections 15 16 17 18 27 28 31 34 and 36;

The Act of 1898 section 3 from the words "Proceedings for" to the end of the section and sections 27 to 35 (inclusive) and 64.

(2) Sections 19 and 20 of the Order of 1881 and the Newhaven and Seaford Water (Temporary Increase of Charges) Order 1920 (S.R. & O. 1920 No. 2407) are hereby repealed as from the twenty-fourth day of June nineteen hundred and twenty-two.

(3) The provisions of the East Blatchington and Seaford Water Order 1880 so excepted from repeal as set forth at length in the Schedule to this Act shall continue in force as though the same with the substitution of the words "the Company" for "the undertakers" and any other necessary modifications were re-enacted in this Act.

64. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may in whole or in part be charged against revenue.

Costs of
Act.

A.D. 1922. The SCHEDULE referred to in the foregoing Act.

PROVISION OF THE EAST BLATCHINGTON AND SEAFORD
WATER ORDER 1880 EXCEPTED FROM REPEAL.

Interpre-
tation.

3. . . . In this Order—

* * * * *

The expression “deposited plans” and “deposited sections” shall mean respectively the plans and sections deposited for the purposes of this Order :

Power to
construct
waterworks
and supply
water.

9. The Undertakers may on the lands delineated on the deposited plans while they are possessed of the same make and maintain in the lines and according to the levels shown on the deposited plans and deposited sections the works hereinafter described with all needful tanks pipes culverts cuts drains sluices engines pumps filtering beds weirs meters and other works connected therewith.

* * * * *

The works authorised by this Order are as follows :—

- 1 A well pumping station and reservoir near Bullock Hill Barn in the parish of East Blatchington aforesaid ;
- 2 An aqueduct conduit or line of pipes commencing at the said well and pumping station and terminating in the road from East Blatchington to Seaford.

Limits of
deviation.

10. In constructing the works authorised by this Order the Undertakers may deviate laterally to any extent within the limits of lateral deviation shown on the deposited plans and the Undertakers may deviate vertically from the levels shown on the deposited sections to any extent not exceeding three feet upwards or seven feet downwards.

Period for
completion
of works.

11. . . . subject to the restrictions and provisions of this Order the Undertakers may from time to time alter enlarge and extend their engines machinery tanks wells pipes reservoirs and other works in such way and manner as may be requisite or advisable for supplying water within the limits of supply.

Differences
with railway
and other
companies.

12. If any difference arises between the Undertakers and any railway canal or other company whose land or works the Undertakers have power under the authority of this Order to

cross for the purpose of meeting the demands for water within the limits of supply as to the mode of laying down repairing altering or enlarging their pipes or as to the facilities to be afforded for the same the same shall be settled by an engineer to be appointed by the Board of Trade at the request of either party.

A.D. 1922.
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